2020111001067 55
Total Pages: 19
11/10/2020 02:55 PM Fees: $30.00
Lisa Posthumus Lyons, County Clerk/Register
Kent County, MI

G012

19/8/9

I HEREBY CERTIFY that there are No Tax Liens or Titles held by the State or any Individual against the within description, and all Taxes on same are paid for five years previous to the date of this instrument, as appears by the records in my office. This certificate does not apply to current taxes, if any now in process of collection.
DATE 11-10 20 20
Deputy, Kent County Treasurer, Grand Rapids, Michigan

FIRST AMENDMENT TO MASTER DEED OF

43 NORTH

RECEIVED ROD
2020 NOV 10 PM 2:54

(Act 59, Public Acts of 1978
as amended)

REPLAT NO. 1 TO KENT COUNTY CONDOMINIUM SUBDIVISION PLAN NO. 982

(1) First Amendment to Master Deed of 43 North.

(2) Exhibit "A" to First Amendment to Master Deed: Affidavit of Mailing as to Notices required by Section 90(5) of the Michigan Condominium Act.

(3) Exhibit "B" to First Amendment to Master Deed: Replat No. 1 to Condominium Subdivision Plan for 43 North.

No interest in real estate being conveyed hereby, no revenue stamps are required.

This First Amendment to Master Deed Drafted By
and Return to After Recording:

TODD A. HENDRICKS (P45782)
RHOADES McKEE PC
55 Campau Ave. NW, Suite 300
Grand Rapids, MI 49503

PPN 41-06-35-100-043 '14
VERIFIED BY PD&M AB
From 41-06-35-100-040 '14
41-06-35-100-039 '07
41-06-35-301-001 '92

FIRST AMENDMENT TO MASTER DEED

43 NORTH

(Act 59, Public Acts of 1978 as amended)

Wolven Investments, LLC, a Michigan limited liability company of 3115 Railway Drive, Byron Center, Michigan 49315, as Developer of 43 North, a condominium project established pursuant to the Master Deed thereof recorded on November 13, 2014, at Instrument No. 20141113-0094509, Kent County, Michigan records (the "**Master Deed**"), being Kent County Condominium Subdivision Plan No. 982 (the "**Project**"), pursuant to Section 90 of the Michigan Condominium Act and the provisions of Article XII of the Master Deed, hereby amends the Master Deed in accordance with this First Amendment to Master Deed (the "**First Amendment**") for purposes of expanding and enlarging the Project to include eighteen (18) additional Units by the addition to the Project of the land area which is legally described on **Schedule 1** attached hereto (the "**Expansion Area**"), and revising the Condominium Subdivision Plan consistent with the same. To accomplish these purposes, the Master Deed is amended as follows:

AMENDMENT

1. The Developer does, upon the recording hereof, submit and establish the Expansion Area as part of the Project and does declare that the Expansion Area will be held, conveyed, hypothecated, encumbered, leased, rented, occupied, improved, or in any other manner utilized subject to the provisions of the Act, and to the covenants, conditions, restrictions, uses, limitations, and affirmative obligations set forth in the Master Deed, all of which will be deemed to run with the land and will be a burden and a benefit to Developer, its successors and assigns, and to any persons acquiring or owning an interest in the Expansion Area, their grantees, successors, heirs, personal representatives, administrators and assigns.

2. Section 1.2 of Article I of the Master Deed, entitled "Nature of Project," is amended to add the following sentence at the end of such Section 1.2:

> "The second phase of the Project consists of Units 26 through 43, inclusive, as set forth completely in Replat No. 1 of Kent County Subdivision Plan No. 982."

3. The legal description contained in Section 2.1 of Article II of the Master Deed is replaced and superseded in its entirety with the following legal description which expands and enlarges the Project:

> "Part of the West 1/2 of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest corner of said Section; thence N89°52'07"E 849.42 feet along

the North line of said Section to the Place of Beginning; thence continuing N89°52'07"E 487.12 feet along the North line of said Section; thence S00°39'11"W 2328.71 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; N89°57'35"W 368.64 feet; thence S35°57'29"W 709.98 feet; thence N89°57'35"W 554.15 feet parallel with the East-West 1/4 line of said Section; thence N00°33'50"E 247.51 feet along the West line of said Section to the West 1/4 corner of said Section; thence N00°35'20"E 260.00 feet along the West line of said Section; thence S89°24'40"E 208.71 feet; thence N00°35'20"E 208.71 feet parallel with the West line of said Section; thence S89°24'40"E 104.29 feet; thence N00°35'20"E 750.00 feet along the East line of the West 313.00 feet of the Northwest 1/4 of said Section; thence N89°24'40"W 32.00 feet; thence N00°35'20"E 1019.55 feet along the East line of the West 281 feet of the Northwest 1/4 of said Section; thence N89°52'07"E 573.65 feet parallel with the North line of said Section; thence N00°07'53"W 417.42 feet to the Place of Beginning. Subject to the road rights of way for 11 Mile Road and Wolven Avenue, over the North and East 33.0 feet thereof. Also subject to the road right of way for Elstner Avenue over the West 33.0 feet thereof. Contains 43 Units and 60.22 acres."

4. The Percentage of Value assigned to each Unit in the Project shall remain equal, in accordance with Section 5.2 of Article V of the Master Deed.

5. Section 6.4 of Article VI of the Master Deed, entitled "Utility Easements," is deleted in its entirety and replaced with the following provisions to include references to Lapham Drive (66' Pvt.) and Lapham Court (66' Pvt.):

"6.4 Utility Easements. An Easement for Public and Private Utilities is hereby created within the private road right-of ways (depicted as Hopewell Drive (66' Pvt.), Hopewell Court (66' Pvt.), Thorntons Court, Lapham Drive (66' Pvt.) and Lapham Court (66' Pvt.) on Exhibit "B"), and within the ten (10) foot private easement for public utilities depicted on Exhibit "B", as a non-exclusive perpetual easement for the benefit of the Co-owners, for utility companies and for governmental entities providing utility services to the Project and/or having utility service facilities in the Project for the following purposes only: the right to install, repair, replace, maintain, and/or extend gas lines, electricity lines, telephone lines, cablevision lines, water mains, and sewer mains; the right to install equipment associated with such utility services such as lines, valves, hydrants, fittings, and other improvements; and rights of ingress and egress for the installation, repair, replacement, maintenance, and extension of such utility services and facilities at reasonable times."

6. Section 6.7 of Article VI of the Master Deed, entitled "Drainage/Detention Easements," is deleted in its entirety and replaced with the following provisions:

> "6.7 Drainage/Detention and Utility Easements. Non-exclusive perpetual easements in favor of the Developer during the Development Period, and thereafter in favor of the Association, shall exist on over, along, across, through and under those portions of the Project, designated as storm water drainage easements on Exhibit "B", for the installation, construction, maintenance, repair and replacement of storm water drainage and detention facilities and equipment. Units 4, 5, 6, 7, 8, 13, 14, 15, 27, 28, 29, 31, 32, 37, 38, 39, 40, and 43 are encumbered in part by a private easement for drainage and detention as depicted on the Condominium Subdivision Plan attached as Exhibit "B". All maintenance, repair, and replacement costs associated with such facilities and equipment shall be the responsibility of the Association, except as provided in Section 6.6 above. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 4, 5, 6, 15, 16 and 36 are or will be encumbered by a utility easement for the benefit of Plainfield Charter Township. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Unit 25 are encumbered by a utility easement for the benefit of Plainfield Charter Township as recorded in Instrument No. 20151026-0094347, Kent County, Michigan records. The Co-owners of any Unit encumbered by a drainage easement shall incur no cost (beyond their share of costs incurred by the Association) with respect to the construction, maintenance, repair, or replacement of such equipment and facilities within such easements except to the extent of repair or replacement caused by an intentional or negligent act of the Co-owner or his agents, invitees, or family members. No changes shall be made by a Unit Co-owner in the grading of any Unit or area used as drainage swales which would alter surface water run0off drainage patterns without the prior written consent of the Developer during the Development Period and thereafter the Association. During the Development Period, the Developer reserves the right to establish additional drainage easements across Units and Common Elements, within the Project, in the Developer's Discretion. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 4, 15, 36, 37, 38, 39 and 43 are encumbered by a flooding easement. This Project is Benefitted and Burdened by a floodway easement and storm drain easement located west of Unit 5 as recorded in Instrument No. 20160817-0069327, Kent County, Michigan records. The Association is responsible for maintaining such drainage facilities and equipment and the costs of the same shall constitute expenses of administration hereunder. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 1, 14, 15, 16, 17, 20, 21, 25, 26, 27, 38, 39 and 40 are encumbered by a 30' wide easement to Consumers Energy as recorded in Instrument No. 20070522-0054156, Kent County, Michigan records. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 1,

26 and 27 are encumbered by a 66' wide easement to Michigan Consolidated Gas Company as recorded in Liber 2047, Page 485, Kent County, Michigan records.

7. Section 12.1 of Article XII of the Master Deed, entitled "Expansion of Project," is deleted in its entirety and replaced with the following provisions:

"12.1 Expansion of Project. The Project established pursuant to the Master Deed (as amended by the First Amendment) consists of forty-three (43) Units which may, at the election of Developer, without the consent of any Co-Owners, be treated as the first two phases of an expandable condominium under the Act. Additional Units, if any, will be established upon all or some portion of the following described real property (the "Proposed Future Development"):

Subject to the approval of Algoma Township, the Proposed Future Development may also include all or any portion of the following described property:

S 247.5 FT OF N 495.0 FT OF NW 1/4 SW 1/4 * SEC 35 T9N R11W 7.62 A (41-06-35-301-002), and S 341.52 FT OF N 836.52 FT OF NW 1/4 SW 1/4 * SEC 35 T9N R11W 9.98 A (41-06-35-301-003)."

8. Section 6.2.9 of Article VI of the Bylaws, entitled "Minimum Building Opening Elevations," is deleted in its entirety and replaced with the following provisions:

"6.2.9 Minimum Building Opening Elevations. The residences constructed upon Units 4, 5, 6, 7, 8, 14, 15, 26, 27, 28, 29, 39, 40, 41, 42, and 43 shall comply with the minimum building opening elevation requirements noted on Sheets 5 and 6 of Replat No. 1 to the Condominium Subdivision Plan, which is attached as Exhibit "B" to this First Amendment."

9. The following provisions are added as new Sections 6.2.13 and 6.2.14 of Article VI of the Condominium Bylaws, entitled "Restrictions":

"6.2.13 Septic Systems – Phase II. Section 6.2.11, entitled "Septic Systems," shall not apply to Units 26 through 43, inclusive ("Phase II Units").

The following provisions shall only apply to the Phase II Units:

(i) With the application to obtain a permit from the Kent County Health Department (KCHD) for a septic tank and effluent disposal areas, the Co-owner will submit to KCHD a site development plan drawn to scale that will locate the dwelling, drives and right-of-ways, utilities, Unit boundary

lines, building site and proposed septic location. As part of the application, KCHD may require a topographical map showing existing and proposed contours. Contour intervals shall not exceed two (2) feet. KCHD may require a professional engineer or licensed surveyor to submit plans on behalf of the Unit Co-owner.

(ii) KCHD cannot guarantee that all individual site development plans will be approved. Owners are encouraged to submit site development plans for review prior to purchasing a lot.

(iii) Utilities, buildings, drives, or other structures that may interfere with the installation and operation of the on-site sewage disposal system shall not be permitted within the designated initial and replacement sewage disposal areas as indicated on the permit issued by KCHD.

(iv) Site modification in the area of the initial and replacement wastewater disposal systems may be required by KCHD. Site modification would typically include soil removal and backfill with approved washed sand (2NS) or low pressure dosed mound type systems.

(v) Designated initial and replacement sewage disposal areas shall not be located within any easement or Common Element area and must be isolated a minimum of 100 feet from surface water, 50 feet from any water well, 50 feet from the high water elevation in the wetland area bounded by Units 36-39, 25 feet from foundation walls containing subsurface drains, 25 feet from storm sewer catch basins, 10 feet from solid storm sewers, 10' from water mains and service connections, and 10' from Unit boundaries.

6.2.14 Water Systems – Phase II. Section 6.2.12, entitled "Water Systems," shall not apply to Phase II Units.

The following provisions shall only apply to the Phase II Units: No water supply wells will be permitted on any Unit. Each Unit will be served by a public water supply. Installation of irrigation wells, vertical loop geothermal borehole, or similar structures will NOT be permitted by KCHD."

10. The Condominium Subdivision Plan attached to the Master Deed as Exhibit B, is hereby amended by Replat No. 1 of Kent County Subdivision Plan No. 982, attached hereto as **Exhibit B** ("**Replat No. 1**"), which Replat No. 1 replaces and supersedes the Condominium Subdivision Plan attached to the Master Deed in its entirety.

11. Replat No. 1 depicts the expansion and enlargement of the Project to include Units 26 through 43, inclusive, within the Expansion Area. In accordance with the Replat No. 1, the Project contains a total of forty-three (43) Units, which may be expanded by the Developer in

accordance with Article XII of the Master Deed.

12. Capitalized terms not defined in this First Amendment shall have the meanings assigned to such terms in the Master Deed.

13. Except as specifically amended and modified by this First Amendment, all provisions of the Master Deed shall remain in full force and effect.

14. In the event of a conflict or inconsistency between the terms of this First Amendment and the terms of the Master Deed, the terms of this First Amendment shall govern.

[*the remainder of this page is intentionally blank*]

This First Amendment to Master Deed was duly executed on November 9th, 2020.

DEVELOPER:

WOLVEN INVESTMENTS, LLC, a Michigan limited liability company

By: KENSINGTON REALTY GROUP, INC., a Michigan corporation, its Manager

By: _____
Dale H. Kraker
Its: President

Acknowledged before me by Dale H. Kraker, President of Kensington Realty Group, Inc., a Michigan corporation, the Manager of Wolven Investments, LLC, a Michigan limited liability company, on behalf of the company, in Kent County, Michigan, on November 9th, 2020.

_____
MICHELLE FRY, Notary Public
Kent County, Michigan
Acting in Kent County, Michigan
My commission expires: 9/19/2025

MICHELLE FRY
Notary Public - State of Michigan
County of Kent
My Commission Expires Sep 19, 2025
Acting in the County of _____

2181466_1

Schedule 1

Expansion Area

Part of the West 1/2 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest 1/4 corner of said Section; thence N89°52'07"E 1336.54 feet along the North line of said Section; thence S00°39'11"W 2155.19 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section to the Place of Beginning; thence continuing S00°39'11"W 173.52 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; thence N89°57'35"W 368.64 feet; thence S35°57'29"W 709.98 feet; thence N89°57'35"W 554.15 feet parallel with the East-West 1/4 line of said Section; thence N00°33'50"E 247.51 feet along the West line of said Section to the West 1/4 corner of said Section; thence N00°35'20"E 260.00 feet along the West line of said Section; thence S89°24'40"E 208.71 feet; thence N00°35'20"E 208.71 feet parallel with the West line of said Section; thence S89°24'40"E 104.29 feet; thence N00°35'20"E 750.00 feet along the East line of the West 313.00 feet of the Northwest 1/4 of said Section; thence S51°07'59"E 202.74 feet; thence S41°52'26"E 227.00 feet; thence S10°11'01"W 39.50 feet; thence Southeasterly 66.96 feet along a 60.00 foot radius curve to the right, the long chord of which bears S47°50'36"E 63.54 feet; thence Southeasterly 35.79 feet along a 50.00 foot radius curve to the left, the long chord of which bears S36°22'40"E 35.03 feet; thence S56°53'05"E 153.03 feet; thence Northeasterly 33.15 feet along a 1233.00 foot radius curve to the right, the long chord of which bears N33°37'12"E 33.15 feet; thence N34°23'25"E 144.99 feet; thence S55°45'10"E 66.00 feet; thence S34°23'25"W 141.03 feet; thence S61°42'26"E 462.35 feet; thence S89°20'49"E 33.00 feet to the Place of Beginning. Subject to the road right of way for Wolven Avenue over the East 33.0 feet thereof. Contains 21.19 acres.

EXHIBIT A

AFFIDAVIT OF MAILING

Dale H. Kraker, being duly sworn, deposes and says that:

1. He is President of Kensington Realty Group, Inc., a Michigan corporation, the Manager of Wolven Investments, LLC, a Michigan limited liability company, the Developer of 43 North (the "**Project**"), a condominium project located in Kent County, Michigan.

2. On September 14, 2020, notice of the First Amendment to Master Deed of the Project was sent to all Co-owners of record in the Project as required by Section 90(5) of the Michigan Condominium Act, pursuant to the Co-owners roster maintained by the Developer. Such notices were sent by first class mail, postage fully prepaid.

Further deponent saith not.

Dale H. Kraker

Acknowledged before me by Dale H. Kraker in Kent County, Michigan, on November 9th, 2020.

Notary Public, Kent County, Michigan
Acting in Kent County, Michigan
My commission expires: 9/19/2025

MICHELLE FRY
Notary Public - State of Michigan
County of Kent
My Commission Expires Sep 19, 2025
Acting in the County of _____

DRAFTED BY:

TODD A. HENDRICKS (P45782)
RHOADES McKEE PC
55 Campau Ave. NW, Suite 300
Grand Rapids, MI 49503

REPLAT NO. 1 TO KENT COUNTY CONDOMINIUM SUBDIVISION PLAN NO. 982
EXHIBIT "B" TO THE MASTER DEED OF:

43 NORTH

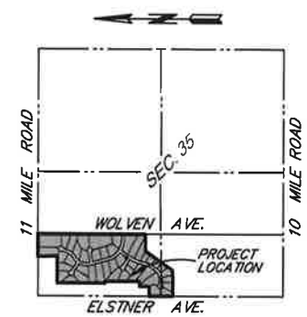
ALGOMA TOWNSHIP, KENT COUNTY, MICHIGAN
SECTION 35, TOWN 9 NORTH, RANGE 11 WEST

ATTENTION COUNTY REGISTER OF DEEDS
THE CONDOMINIUM SUBDIVISION PLAN NUMBER MUST BE ASSIGNED IN CONSECUTIVE SEQUENCE. WHEN A NUMBER HAS BEEN ASSIGNED TO THIS PROJECT IT MUST BE PROPERLY SHOWN ON THE SURVEYORS CERTIFICATE ON THIS SHEET.

DEVELOPER: WOLVEN INVESTMENTS LLC
3115 RAILWAY DRIVE BYRON CENTER, MI 49315

SURVEYOR: ROOSIEN & ASSOCIATES, SURVEYING AND ENGINEERING, P.L.L.C.
5055 PLAINFIELD AVE. N.E. GRAND RAPIDS, MI 49525

DESCRIPTION OF 43 NORTH:
Part of the West 1/2 of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest corner of said Section; thence N89°52'07"E 849.42 feet along the North line of said Section to the Place of Beginning; thence continuing N89°52'07"E 487.12 feet along the North line of said Section; thence S00°39'11"W 2328.71 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; N89°57'35"W 368.64 feet; thence S35°57'29"W 709.98 feet; thence N89°57'35"W 554.15 feet parallel with the East–West 1/4 line of said Section; thence N00°33'50"E 247.51 feet along the West line of said Section to the West 1/4 corner of said Section; thence N00°35'20"E 260.00 feet along the West line of said Section; thence S89°24'40"E 208.71 feet; thence N00°35'20"E 208.71 feet parallel with the West line of said Section; thence S89°24'40"E 104.29 feet; thence N00°35'20"E 750.00 feet along the East line of the West 313.00 feet of the Northwest 1/4 of said Section; thence N89°24'40"W 32.00 feet; thence N00°35'20"E 1019.55 feet along the East line of the West 281 feet of the Northwest 1/4 of said Section; thence N89°52'07"E 573.65 feet parallel with the North line of said Section; thence N00°07'53"W 417.42 feet to the Place of Beginning. Subject to the road rights of way for 11 Mile Road and Wolven Avenue, over the North and East 33.0 feet thereof. Also subject to the road right of way for Elstner Avenue over the West 33.0 feet thereof. Contains 43 Units and 60.22 acres.



LOCATION MAP
NOT TO SCALE

SURVEYORS CERTIFICATE

I, KEVIN ROOSIEN, A LICENSED LAND SURVEYOR IN THE STATE OF MICHIGAN HEREBY CERTIFY:

THAT THE SUBDIVISION PLAN KNOWN AS KENT COUNTY CONDOMINIUM SUBDIVISION PLAN NO. 982 AS SHOWN ON THE ACCOMPANYING SURVEY PLAN REPRESENTS A SURVEY ON THE GROUND MADE UNDER MY DIRECTION;

THAT THERE ARE NO EXISTING ENCROACHMENTS UPON THE LAND AND PROPERTY AS DESCRIBED HEREIN;

THAT THE REQUIRED MONUMENTS AND IRON MARKERS WILL BE SET IN THE GROUND AS REQUIRED BY THE RULES PROMULGATED UNDER SECTION 142 OF ACT NO. 59 OF THE PUBLIC ACTS OF 1978 AS AMENDED

THAT THE ACCURACY OF THIS SURVEY IS WITHIN THE LIMITS REQUIRED BY THE RULES PROMULGATED UNDER SECTION 142 OF ACT NO. 59 OF THE PUBLIC ACTS OF 1978 AS AMENDED

THAT THE BASIS OF BEARING IS BASED ON THE NORTH LINE OF SECTION 35 BEING N89°52'07"E – PER THE ALGOMA TOWNSHIP CONTROL DIAGRAM (KENT COUNTY REMONUMENTATION)

PROPOSED — NOV. 9, 2020
KEVIN ROOSIEN, P.S. NO. 31604 — DATE

THIS CONDOMINIUM SUBDIVISION PLAN IS NOT REQUIRED TO CONTAIN DETAILED PROJECT DESIGN PLANS PREPARED BY THE APPROPRIATE LICENSED DESIGN PROFESSIONAL. SUCH PROJECT DESIGN PLANS ARE FILED, AS PART OF THE CONSTRUCTION PERMIT APPLICATION, WITH THE ENFORCING AGENCY FOR THE STATE CONSTRUCTION CODE IN THE RELEVANT GOVERNMENTAL SUBDIVISION. THE ENFORCING AGENCY MAY BE A LOCAL BUILDING DEPARTMENT OR THE STATE DEPARTMENT OF LICENSING AND REGULATORY AFFAIRS.

SHEET INDEX:

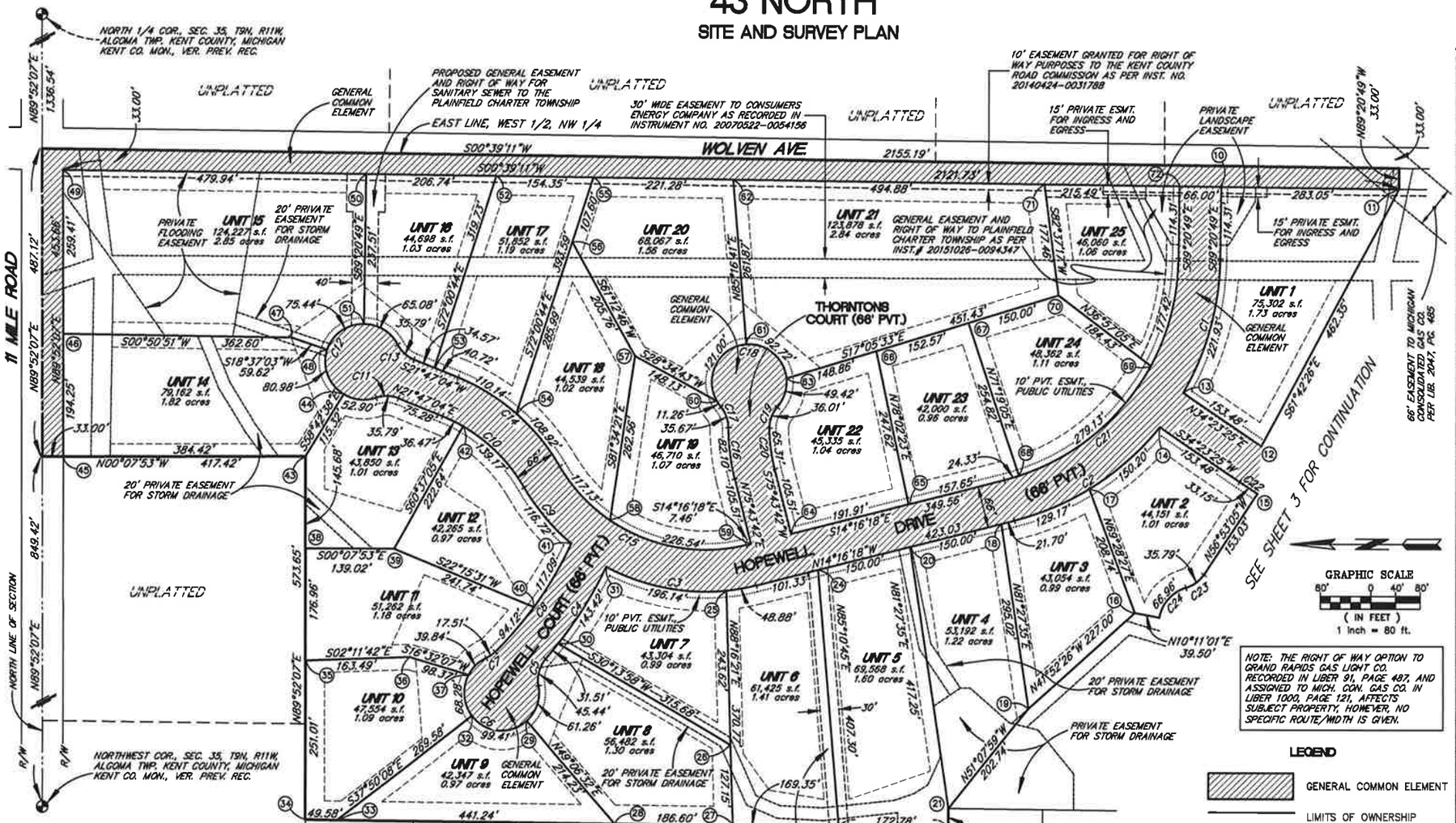
SHEET NO. 1 ..... COVER SHEET
SHEET NO. 2 ..... SITE AND SURVEY PLAN
SHEET NO. 3 ..... SITE AND SURVEY PLAN
SHEET NO. 4 ..... SITE AND SURVEY PLAN
SHEET NO. 5 ..... UTILITY AND EASEMENT PLAN
SHEET NO. 6 ..... UTILITY AND EASEMENT PLAN
SHEET NO. 7 ..... UTILITY AND EASEMENT PLAN
SHEET NO. 8 ..... EASEMENT ENLARGEMENT PLAN
SHEET NO. 9 ..... OVERALL SITE PLAN

Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C1

STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

43 NORTH

SITE AND SURVEY PLAN



NOTE: THE RIGHT OF WAY OPTION TO GRAND RAPIDS GAS LIGHT CO. RECORDED IN LIBER 91, PAGE 487, AND ASSIGNED TO MICH. CON. GAS CO. IN LIBER 1000, PAGE 121, AFFECTS SUBJECT PROPERTY, HOWEVER, NO SPECIFIC ROUTE/WIDTH IS GIVEN.

LEGEND

GENERAL COMMON ELEMENT

LIMITS OF OWNERSHIP

TABLE OF COORDINATES

PT#	NORTHING	EASTING
10	3131.424	6282.196
11	2848.394	6278.970
12	3067.541	5871.850
13	3190.783	5956.206
14	3228.062	5901.742
15	3073.805	5796.698
16	3267.143	5607.622
17	3340.331	5803.106
18	3479.981	5747.848
19	3436.170	5456.102
20	3625.351	5710.870
21	3563.389	5298.250
22	3563.718	5266.252
23	3736.491	5268.028
24	3770.722	5673.892
25	3917.013	5640.375
26	3909.669	5396.867
27	3905.836	5269.769
28	4092.423	5271.686
29	4232.664	5433.636
30	4182.415	5555.819
31	4106.765	5677.302
32	4320.731	5441.578
33	4533.635	5276.221
34	4583.214	5276.731
35	4583.789	5527.741
36	4420.419	5534.003
37	4326.119	5506.007
38	4584.195	5704.697
39	4445.173	5705.016
40	4221.447	5613.448
41	4162.350	5714.287
42	4335.937	5899.022
43	4584.529	5850.375
44	4524.635	5948.925
45	4968.948	5849.493
46	4969.393	6043.749
47	4606.830	6038.386
48	4550.333	6019.353
49	4969.988	6303.157
50	4490.081	6297.686
51	4492.789	6060.195
52	4283.359	6295.329
53	4382.097	5991.225
54	4250.561	5919.217
55	4129.014	6293.570
56	4162.242	6191.230
57	4063.156	6010.897
58	4101.636	5751.173
59	3877.961	5714.715
60	3933.073	5940.036
61	3886.188	6030.068
62	3907.744	6291.047
63	3821.597	5976.733
64	3813.998	5730.985
65	3628.012	5778.295
66	3679.315	6020.484
67	3533.484	6065.327
68	3451.862	5823.935
69	3242.723	5998.547
70	3390.109	6109.415
71	3412.899	6285.405
72	3197.419	6282.949

TABLE OF CURVES

CURVE	LENGTH	RADIUS	LONG CHORD	DELTA
C1	221.93'	433.00'	S74°39'49"E 219.51'	29°21'59"
C2	279.37'	433.00'	S32°45'19"E 274.55'	36°58'01"
C3	245.02'	333.00'	S06°48'25"W 239.53'	42°09'27"
C4	174.93'	633.00'	S56°39'45"E 174.38'	15°50'02"
C5	45.44'	50.00'	N74°46'51"W 43.89'	52°04'16"
C6	268.79'	60.00'	S27°31'22"W 94.12'	256°40'42"
C7	17.51'	50.00'	S34°10'10"E 17.42'	20°03'47"
C8	211.21'	567.00'	S54°52'21"E 209.99'	21°20'34"
C9	116.72'	333.00'	S49°26'04"W 116.12'	20°04'59"
C10	175.64'	267.00'	N40°37'48"E 172.49'	37°41'30"
C11	35.79'	50.00'	N01°16'38"E 35.03'	41°00'52"
C12	274.40'	60.00'	N68°12'56"W 90.55'	262°01'43"

TABLE OF CURVES

CURVE	LENGTH	RADIUS	LONG CHORD	DELTA
C13	35.79'	50.00'	S42°17'29"W 35.03'	41°00'52"
C14	219.06'	333.00'	N40°37'48"E 215.13'	37°41'30"
C15	343.67'	267.00'	S22°36'07"W 320.43'	73°44'52"
C16	82.10'	333.00'	S82°47'28"W 81.89'	14°07'34"
C17	35.67'	50.00'	N69°25'10"E 34.91'	40°52'10"
C18	274.40'	60.00'	N00°00'05"W 90.55'	262°01'41"
C19	36.01'	50.00'	N69°37'19"W 35.24'	41°16'08"
C20	65.31'	267.00'	S82°44'09"W 65.15'	14°00'56"
C21	480.88'	367.00'	S51°48'34"E 447.21'	75°04'30"
C22	33.15'	1233.00'	S33°37'12"W 33.15'	1°32'26"
C23	35.79'	50.00'	S36°22'40"E 35.03'	41°00'52"
C24	66.96'	60.00'	N47°50'36"W 63.54'	63°56'45"

Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C2

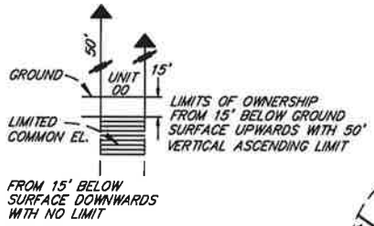
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

NOV. 9, 2020
DATE

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

43 NORTH

SITE AND SURVEY PLAN



PROFILE DRAWING

TYP. UNIT SETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)

TYP. UNIT SETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)

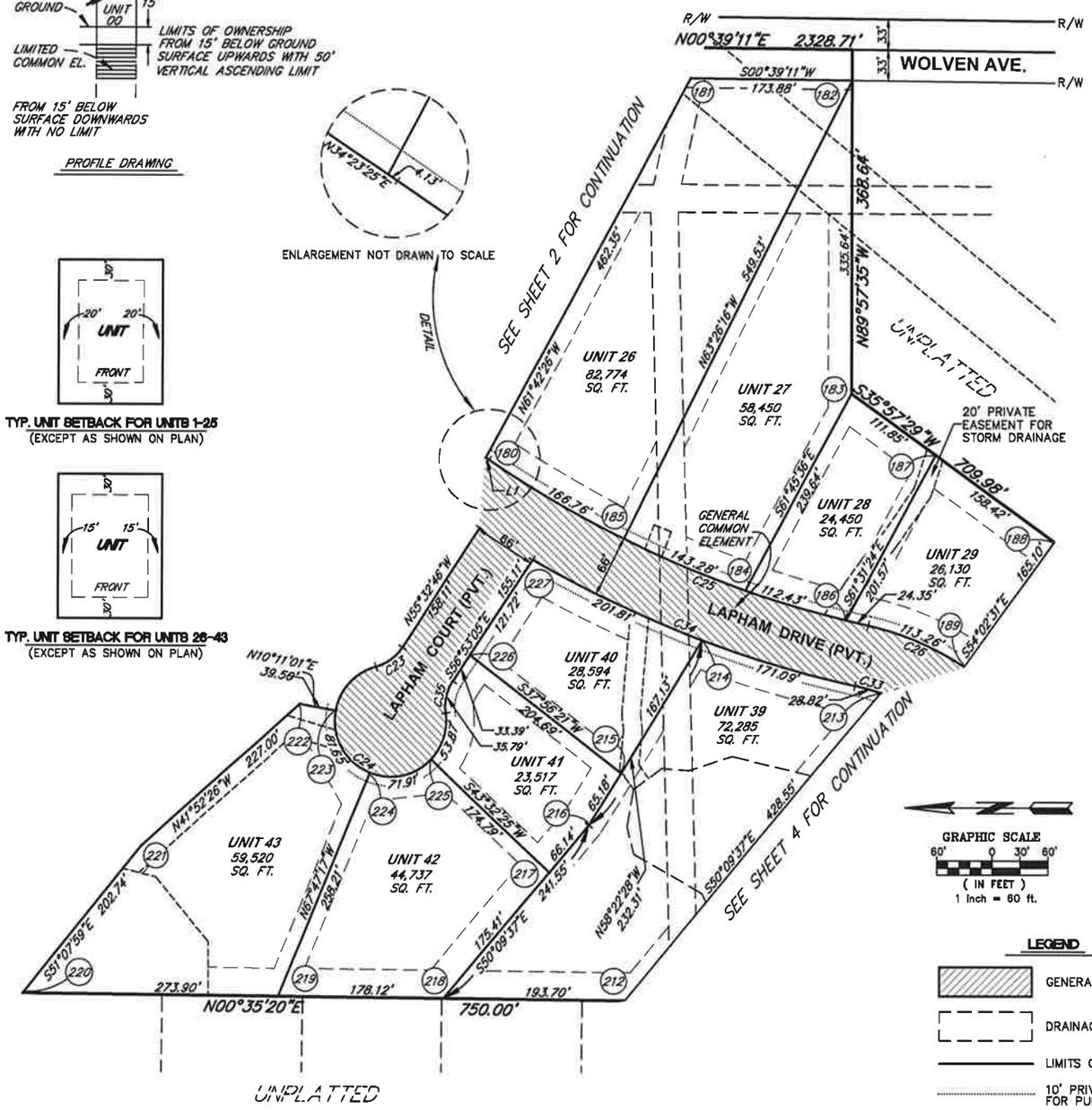


TABLE OF CURVES				
CURVE	LENGTH	RADIUS	LONG CHORD	DELTA
C23	35.79'	50.00'	S36°22'40"E 35.03'	41°00'52"
C24	274.40'	60.00'	S33°06'55"W 90.55'	262°01'43"
C25	446.82'	1167.00'	S23°25'18"W 444.10'	21°56'15"
C26	113.26'	308.00'	N22°59'14"E 112.62'	21°04'08"
C33	88.99'	242.00'	N22°59'14"E 88.49'	21°04'08"
C34	372.90'	1233.00'	S21°07'01"W 371.48'	17°19'42"
C35	35.79'	50.00'	S77°23'31"E 35.03'	41°00'52"

TABLE OF POINTS

Point #	Northing	Easting
180	3067.541	5871.850
181	2848.394	6278.970
182	2701.430	6261.666
183	2674.766	5941.348
184	2788.154	5730.235
185	2920.265	5785.460
186	2680.343	5698.488
187	2584.232	5875.674
188	2455.998	5782.650
189	2552.945	5649.008
212	2917.699	5291.614
213	2643.153	5620.670
214	2834.827	5676.889

Point #	Northing	Easting
215	2922.462	5534.582
216	2956.642	5479.080
217	2999.014	5428.294
218	3111.391	5293.605
219	3289.503	5295.435
220	3563.389	5298.250
221	3436.170	5456.102
222	3267.143	5607.622
223	3228.263	5600.638
224	3191.890	5534.482
225	3125.715	5548.698
226	3083.891	5660.428
227	3017.392	5762.378

TABLE OF LINES

LINE	BEARING	LENGTH
L1	N34°23'25"E	153.48'

GRAPHIC SCALE
60' 0 30' 60'
(IN FEET)
1 inch = 60 ft.

LEGEND

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES

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FILE# 200042-C3

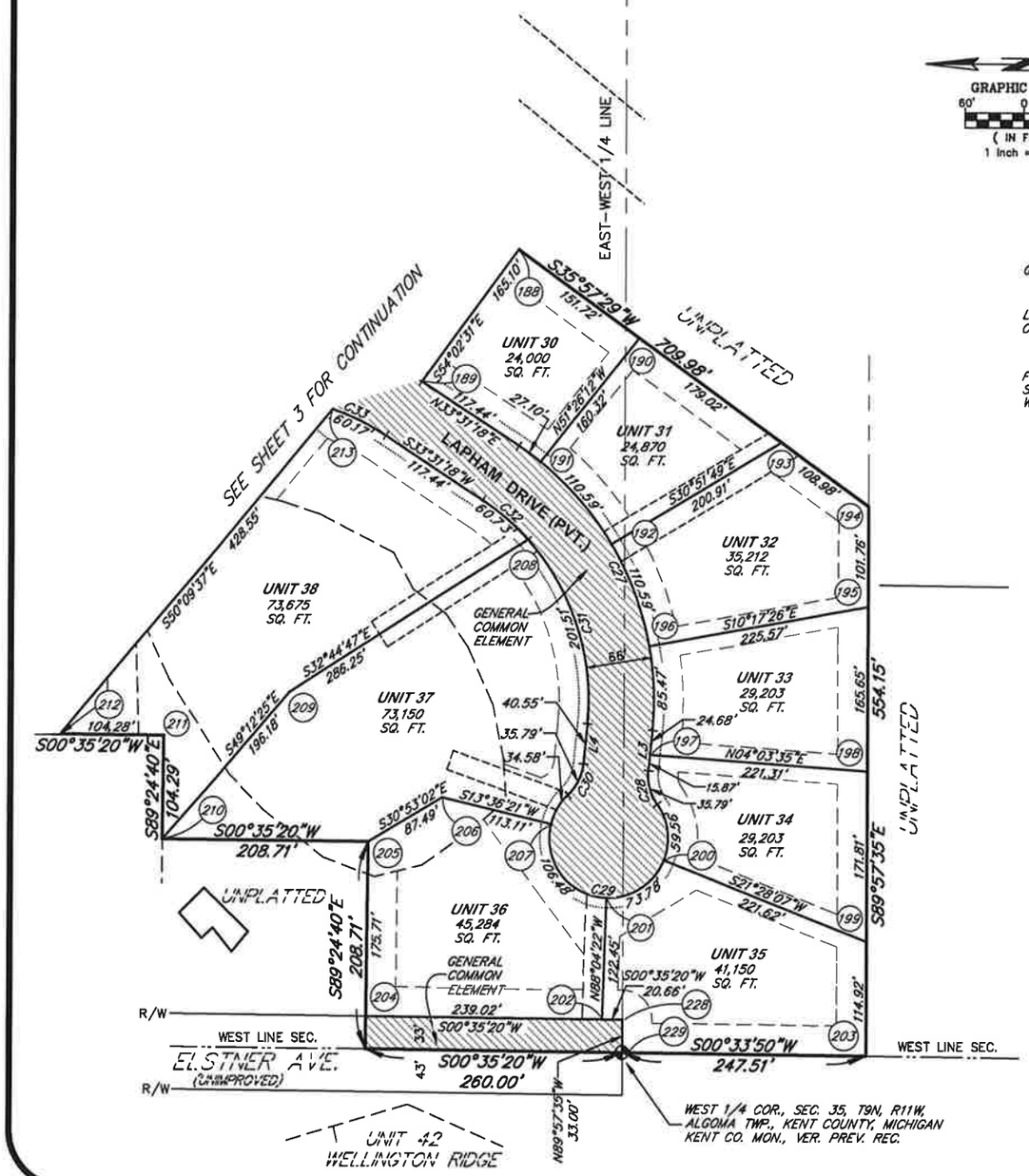
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

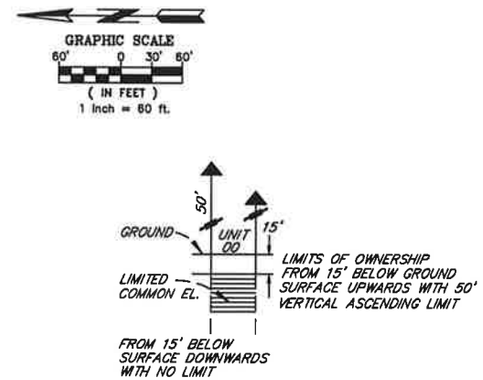
PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

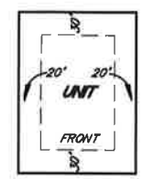
43 NORTH

SITE AND SURVEY PLAN





PROFILE DRAWING



TYP. UNIT SETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)

TYP. UNIT SETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)

LEGEND

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES

TABLE OF CURVES

CURVE	LENGTH	RADIUS	LONG CHORD	DELTA
C27	333.76'	308.00'	N64°33'56"E 317.67'	62°05'15"
C28	35.79'	50.00'	S75°06'08"W 35.03'	41°00'52"
C29	274.40'	60.00'	S05°36'33"W 90.55'	262°01'43"
C30	35.79'	50.00'	S63°53'01"E 35.03'	41°00'52"
C31	201.51'	242.00'	N71°45'16"E 195.74'	47°42'35"
C32	60.73'	242.00'	N40°42'38"E 60.57'	14°22'40"
C33	88.99'	242.00'	N22°59'14"E 88.49'	21°04'08"

TABLE OF POINTS

Point #	Northing	Easting
188	2455.998	5782.650
189	2552.945	5649.008
190	2333.190	5693.562
191	2433.127	5568.208
192	2360.743	5485.379
193	2188.285	5588.445
194	2100.072	5524.454
195	2100.144	5422.692
196	2322.082	5382.397
197	2321.015	5272.706
198	2100.260	5257.039
199	2100.381	5085.226
200	2306.627	5166.339

Point #	Northing	Easting
201	2364.482	5128.332
202	2368.600	5005.955
203	2100.462	4970.820
204	2608.070	4975.413
205	2605.801	5184.112
206	2530.716	5229.021
207	2420.780	5202.413
208	2445.571	5489.621
209	2686.329	5334.781
210	2814.500	5186.258
211	2813.428	5290.542
212	2917.699	5291.614
213	2643.153	5620.670

TABLE OF LINES

LINE	BEARING	LENGTH
L3	S84°23'27"E	40.55'
L4	S84°23'27"E	40.55'

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FILE# 200042-C4

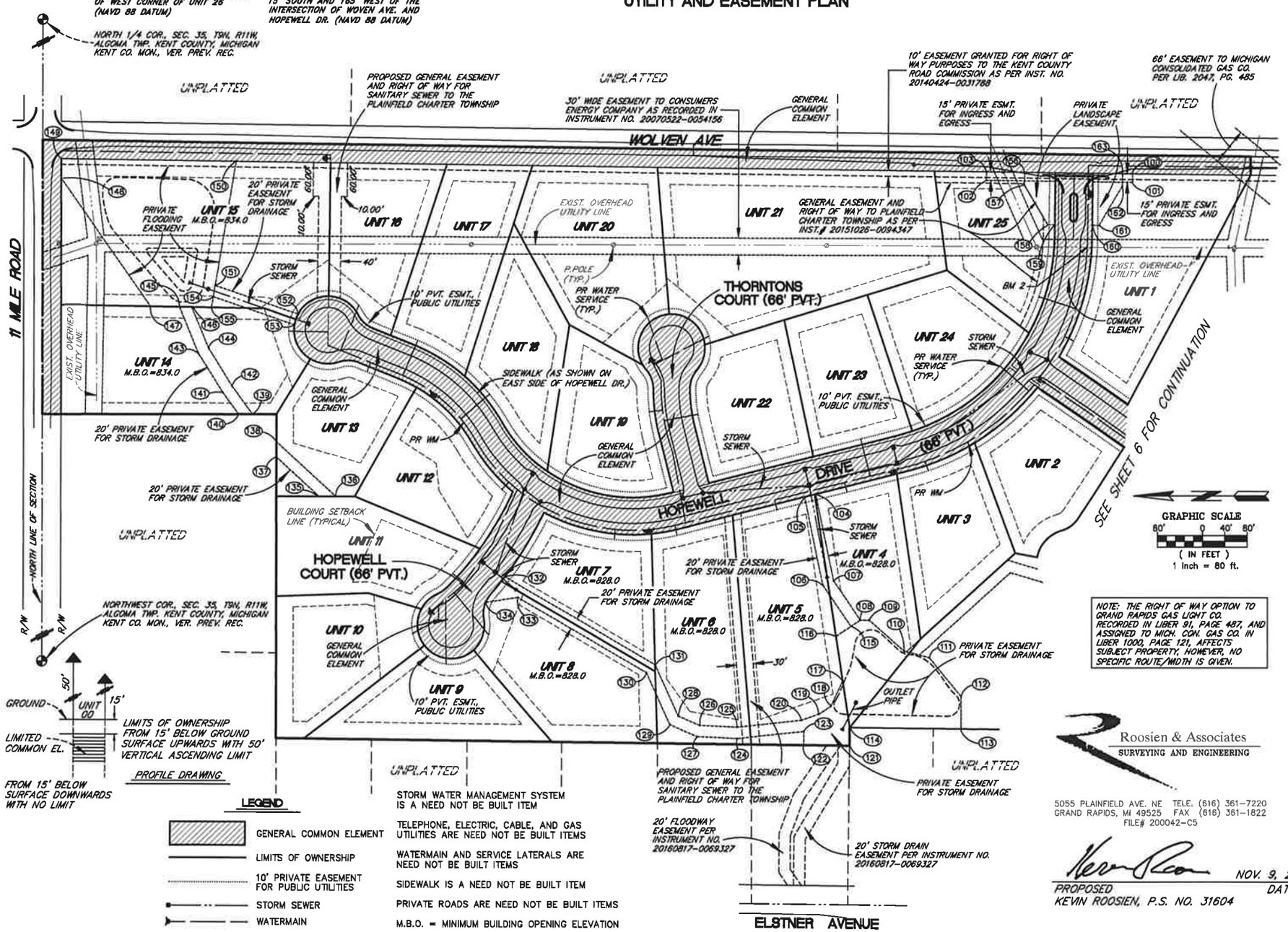
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

43 NORTH

UTILITY AND EASEMENT PLAN



NOTE: THE RIGHT OF WAY OPTION TO GRAND RAPIDS GAS LIGHT CO. RECORDED IN LIBER 91, PAGE 487, AND ASSIGNED TO MICH. CON. GAS CO. IN LIBER 1000, PAGE 121, AFFECTS SUBJECT PROPERTY, HOWEVER, NO SPECIFIC ROUTE/WIDTH IS GIVEN.

LEGEND

- GENERAL COMMON ELEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES
- STORM SEWER
- WATERMAIN

STORM WATER MANAGEMENT SYSTEM IS A NEED NOT BE BUILT ITEM

TELEPHONE, ELECTRIC, CABLE, AND GAS UTILITIES ARE NEED NOT BE BUILT ITEMS

WATERMAIN AND SERVICE LATERALS ARE NEED NOT BE BUILT ITEMS

SIDEWALK IS A NEED NOT BE BUILT ITEM

PRIVATE ROADS ARE NEED NOT BE BUILT ITEMS

M.B.O. = MINIMUM BUILDING OPENING ELEVATION

TABLE OF COORDINATES

PT#	NORTHING	EASTING
100	3059.258	6281.374
101	3059.429	6266.375
102	3319.752	6269.343
103	3319.581	6284.342
104	3623.518	5711.548
105	3642.918	5706.597
106	3610.716	5550.284
107	3591.924	5558.185
108	3544.961	5488.464
109	3529.326	5488.491
110	3466.205	5433.867
111	3420.676	5422.345
112	3364.141	5353.567
113	3364.141	5296.202
114	3563.389	5298.250
115	3561.548	5477.291
116	3587.636	5459.718
117	3575.803	5380.916
118	3596.109	5335.723
119	3617.083	5322.024
120	3648.016	5310.930
121	3563.718	5266.252
122	3643.742	5267.075
123	3643.493	5291.305
124	3761.603	5278.421
125	3762.234	5298.471
126	3829.757	5301.560
127	3834.245	5281.744
128	3868.626	5317.985
129	3883.594	5302.598
130	3925.459	5394.495
131	3909.894	5408.573
132	4176.209	5563.777
133	4153.109	5527.166
134	4211.093	5518.044
135	4508.206	5704.872
136	4478.741	5704.939
137	4584.356	5774.933
138	4584.418	5802.168
139	4627.253	5850.277
140	4652.092	5850.220
141	4680.783	5888.988
142	4664.209	5900.213
143	4723.635	5958.324
144	4705.758	5967.440
145	4757.411	6040.613
146	4735.660	6040.292
147	4809.861	6041.389
148	4969.908	6268.286
149	4969.988	6303.157
150	4658.224	6299.603
151	4694.788	6078.653
152	4546.369	6028.518
153	4552.738	6009.559
154	4698.096	6058.660
155	4701.220	6039.782
156	3251.373	6283.564
157	3251.627	6261.270
158	3210.689	6190.823
159	3198.470	6190.823
160	3132.474	6190.070
161	3120.258	6189.792
162	3077.724	6259.288
163	3077.470	6281.581

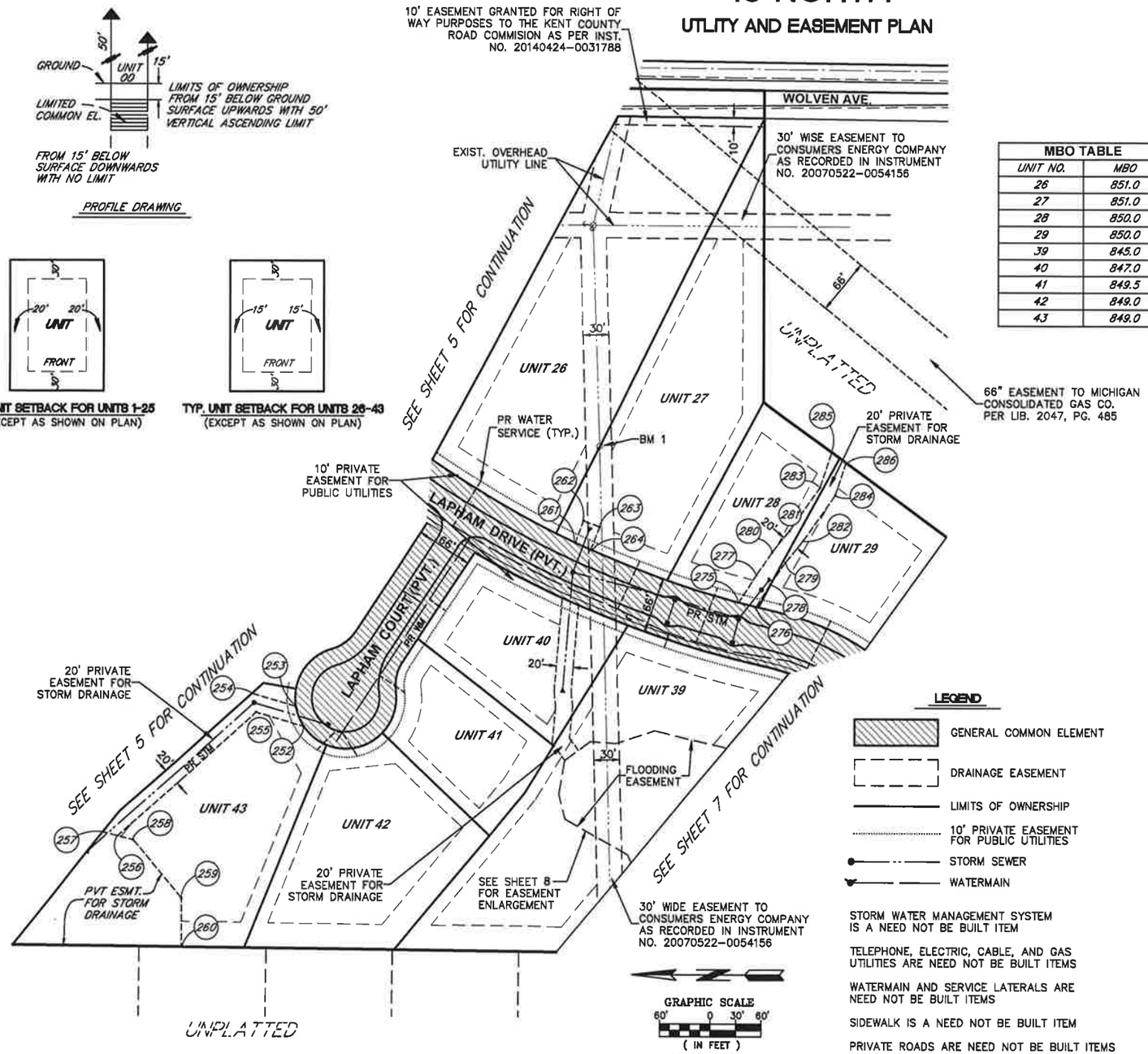
Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C5

NOV. 9, 2020
PROPOSED DATE
KEVIN ROOSIEN, P.S. NO. 31604

STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

43 NORTH

UTLITY AND EASEMENT PLAN



MBO TABLE	
UNIT NO.	MBO
26	851.0
27	851.0
28	850.0
29	850.0
39	845.0
40	847.0
41	849.5
42	849.0
43	849.0

TABLE OF POINTS		
Point #	Northing	Easting
252	3218.799	5556.255
253	3228.348	5579.907
254	3280.848	5595.336
255	3275.796	5573.006
256	3438.759	5426.921
257	3456.142	5431.320
258	3420.676	5422.345
259	3364.141	5353.567
260	3364.141	5296.202
261	2897.353	5774.492
262	2887.547	5800.251
263	2868.856	5793.135
264	2879.113	5766.194
275	2703.438	5704.346
276	2683.053	5699.149

Point #	Northing	Easting
277	2682.739	5737.003
278	2666.109	5725.882
279	2647.795	5751.869
280	2663.749	5763.951
281	2642.991	5789.494
282	2627.007	5777.451
283	2607.588	5840.252
284	2589.527	5831.186
285	2593.546	5882.430
286	2576.568	5870.113

LEGEND

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES
- STORM SEWER
- WATERMAIN

STORM WATER MANAGEMENT SYSTEM IS A NEED NOT BE BUILT ITEM

TELEPHONE, ELECTRIC, CABLE, AND GAS UTILITIES ARE NEED NOT BE BUILT ITEMS

WATERMAIN AND SERVICE LATERALS ARE NEED NOT BE BUILT ITEMS

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M.B.O. = MINIMUM BUILDING OPENING ELEVATION

Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C6

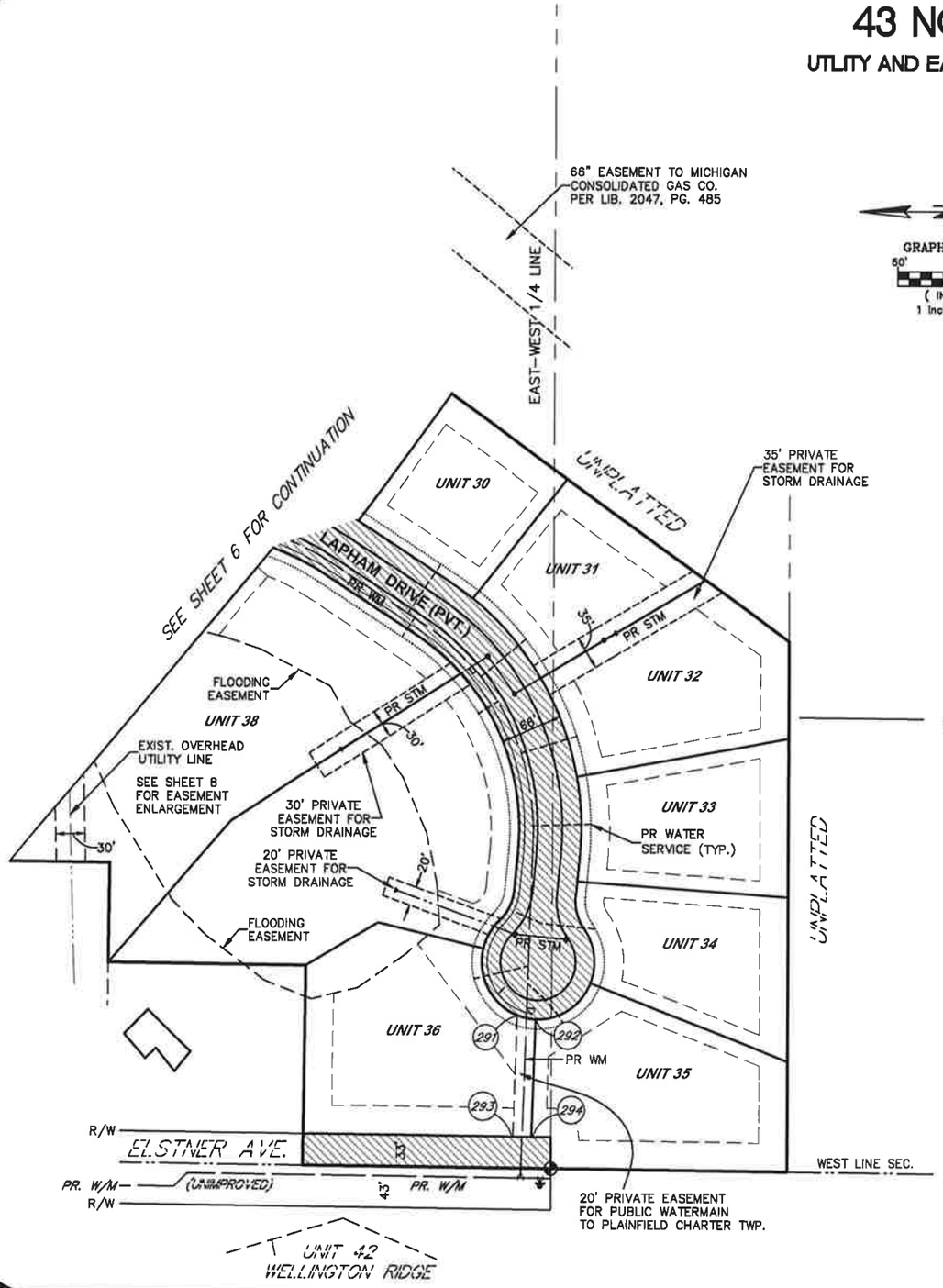
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

43 NORTH

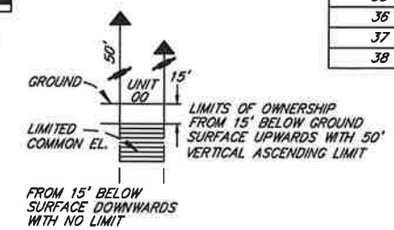
UTLITY AND EASEMENT PLAN



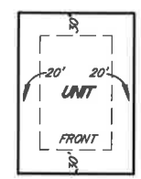
GRAPHIC SCALE
60' 0 30' 60'
(IN FEET)
1 inch = 60 ft.

MBO TABLE	
UNIT NO.	MBO
30	855.0
31	856.0
32	856.0
33	850.0
34	845.0
35	845.0
36	845.0
37	847.0
38	847.0

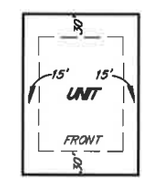
TABLE OF POINTS		
Point #	Northing	Easting
291	2384.355	5132.434
292	2364.482	5128.332
293	2388.605	5006.161
294	2368.600	5005.955



PROFILE DRAWING



TYP. UNIT SETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)



TYP. UNIT SETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)

LEGEND

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES
- STORM SEWER
- WATERMAIN

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Roosien & Associates
SURVEYING AND ENGINEERING
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GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C7

STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

43 NORTH

EASEMENT ENLARGEMENT PLAN

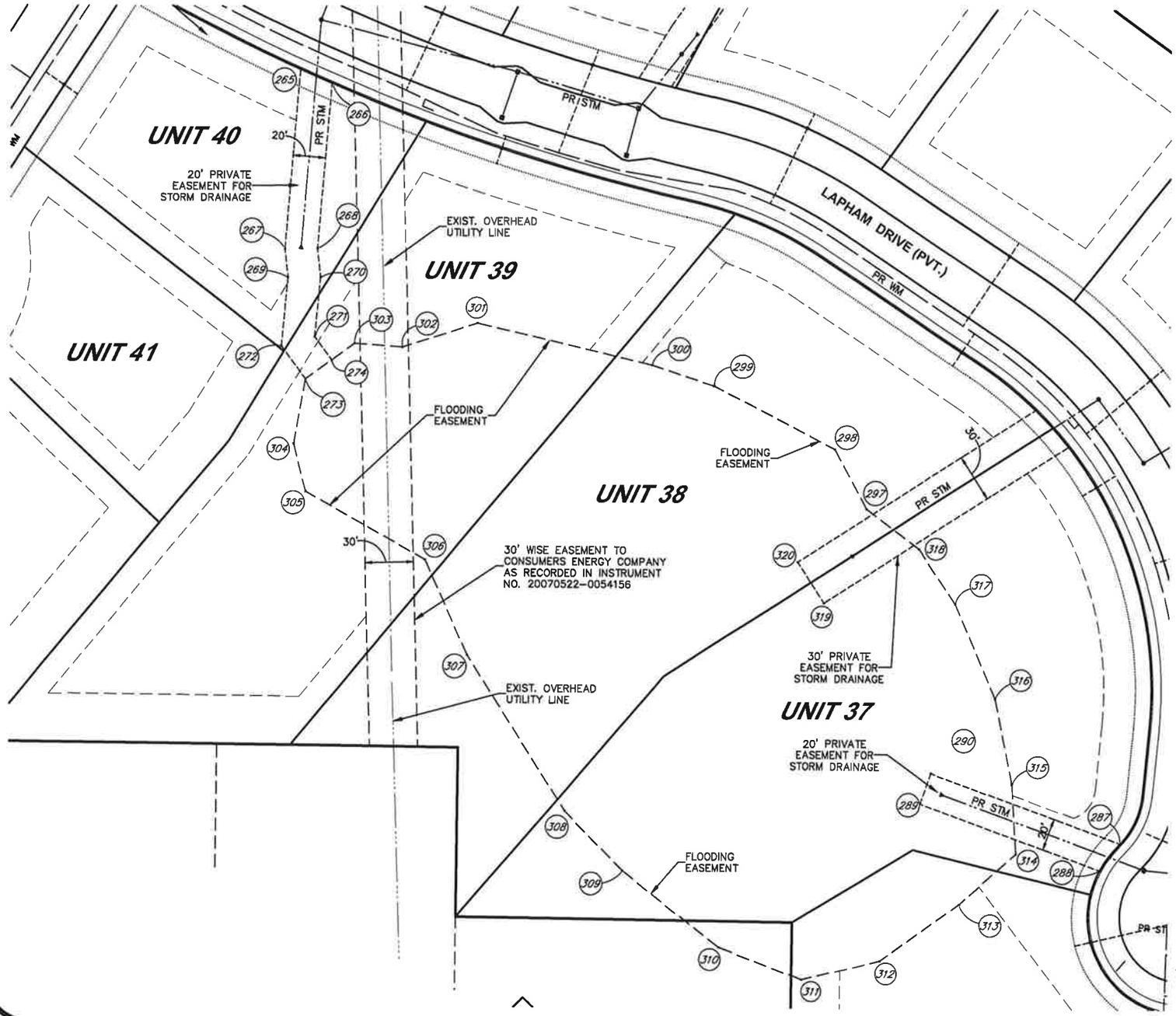
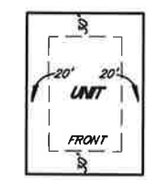
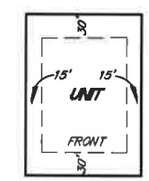


TABLE OF POINTS		
Point #	Northing	Easting
265	2912.610	5708.882
266	2893.257	5700.338
267	2921.937	5597.816
268	2901.845	5598.068
269	2920.018	5580.256
270	2899.915	5580.407
271	2903.385	5543.551
272	2924.008	5537.869
273	2909.047	5517.416
274	2892.905	5529.224
287	2402.118	5233.443
288	2415.197	5216.921
289	2526.375	5257.421
290	2519.530	5276.213
297	2560.916	5438.873
298	2580.822	5475.785
299	2655.291	5514.416
300	2694.221	5527.135
301	2802.303	5552.389
302	2849.045	5537.425



TYP. UNIT BETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)



TYP. UNIT BETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)

GRAPHIC SCALE
30' 0 15' 30'
(IN FEET)
1 inch = 30 ft.

Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C8

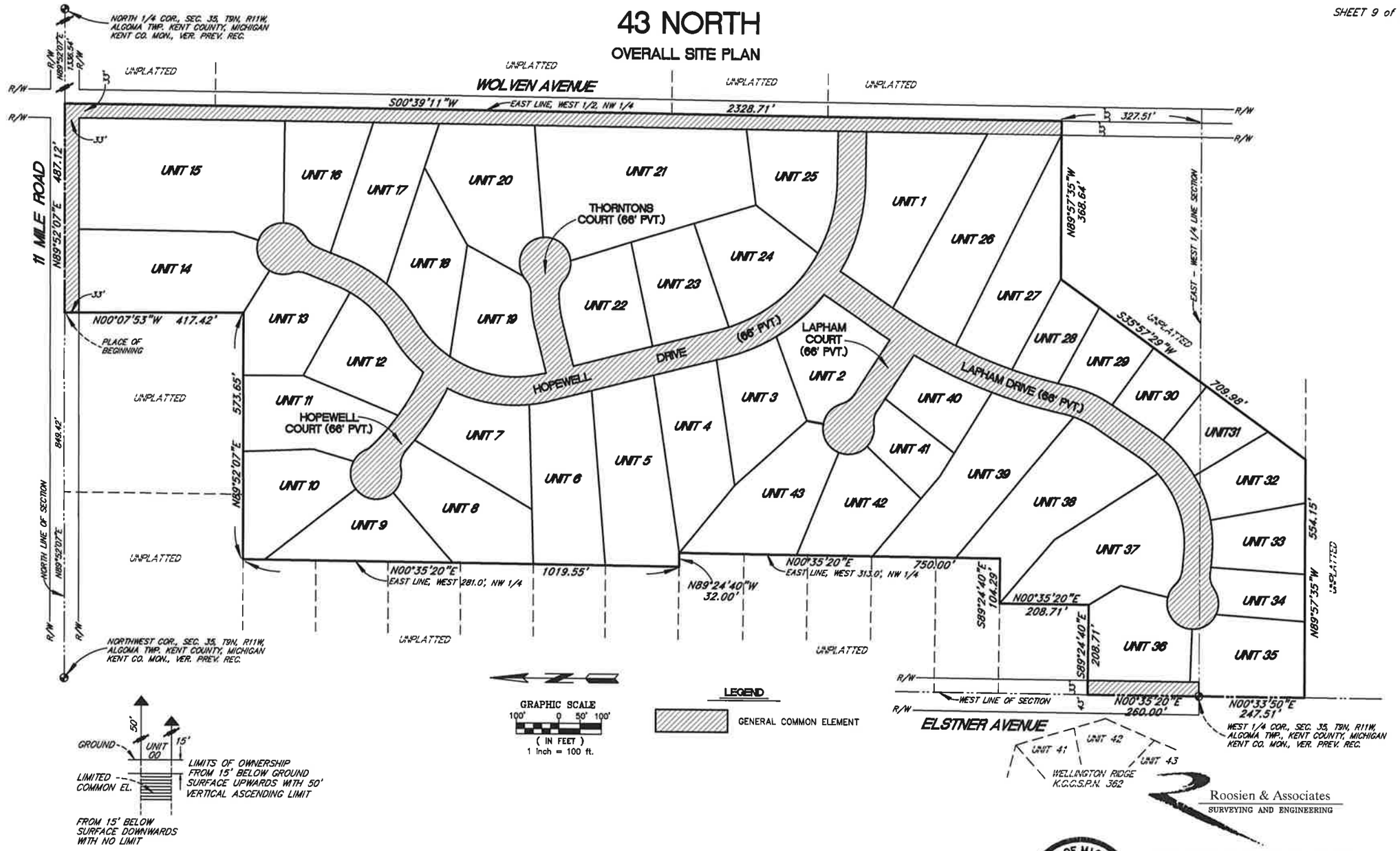
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

43 NORTH

OVERALL SITE PLAN



Roosien & Associates
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5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
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FILE# 200042-C4

STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

NOV. 9, 2020
PROPOSED DATE
KEVIN ROOSIEN, P.S. NO. 31604